

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 03/24/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-00197

CASE NAME: JPMORGAN CHASE BANK N.A. VS. SHANNON HAGMANN

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

2. 9:00 AM CASE NUMBER: L24-02377

CASE NAME: BANK OF AMERICA N.A. VS. CARLOS GONZALEZ

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake, and it extends its apology.

Disposition

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

3. 9:00 AM CASE NUMBER: L24-06534

CASE NAME: CITIBANK N.A. VS. MARIA MOJICA

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

4. 9:00 AM CASE NUMBER: L24-10099

CASE NAME: CAPITAL ONE, N.A. VS. IRIS C ARNEDO

***HEARING ON MOTION IN RE: ON THE PLEADINGS**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/17/25, a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 8/12/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 4/2/25, were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the sole cause of action, based on the allegation that Defendant became indebted in the amount of \$8,926.31, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See

Order entered 8/20/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,926.31.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

5. 9:00 AM CASE NUMBER: L25-02862
CASE NAME: WELLS FARGO BANK, N.A. VS. SALLIE KNOWLTON
*HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED FILED BY PLN ON 11/24/25
FILED BY: KNOWLTON, SALLIE

TENTATIVE RULING:

Plaintiff filed a motion to deem as true requests for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court’s mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court to notify Defendant.

6. 9:00 AM CASE NUMBER: L25-03679

CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
HEARING IN RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT
FILED BY:

TENTATIVE RULING:

Background

Defendant seeks to file a Cross Complaint against Plaintiff, where the causes of action stem from the debt at issue in Plaintiff's Complaint. Specifically, Defendant alleges causes of action relating to the collection practices of Plaintiff during prosecution, as well as to the conduct of the Plaintiff during its reporting of Plaintiff's debt to third party credit agencies.

The pleadings from both parties were filed and served properly.

Analysis

A defendant's cross complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action...in [the] complaint. Code of Civ Procedure Section 426.10(c). Causes of action arise out of the same transaction or occurrence if the factual or legal issues are logically related. "[T]ransaction is construed broadly; it is not confined to a single, isolated act or occurrence...but may embrace a series of acts or occurrences logically interrelated." *Heshejin v. Rostami* (2020) 54 CA5th 984, 993-994.

To be considered a compulsory cross-complaint, the cause of action must have existed at the time Defendant served its answer to the complaint. CCP Section 426.30(a),

The court has the discretion to allow a defendant to file a cross-complaint at any time during a lawsuit. In fact, the court must grant leave as long as the defendant is acting in good faith. CCP 426.50; *Silver Organizations Ltd. v. Frank* (1990) 217 CA3d 94, 98-99.

In the instant matter, only the third and fourth causes of action appear to have occurred prior to the filing of the Answer in the matter. The other causes allude to the litigation practices of the Plaintiff, such as the manner in which they responded to Defendant's discovery requests, or the methods the Plaintiff has employed to reach a settlement during the prosecution of their complaint.

The third and fourth causes of action alleged by Defendant concern the alleged behavior of Plaintiff with respect to the reporting of Defendant's debt to third parties – the very debt at issue in the instant matter - and whether this reporting was done in bad faith, or without reasonable diligence. While Defendant does not specify when these actions are alleged to have occurred, they do not appear to hinge on the instant action – in other

words, they don't appear to be behaviors tied to prosecution of the lawsuit.

Plaintiff complains that Defendant has already had the opportunity to file a cross complaint, and should not be given another. But there was no bad faith in Defendant's unsuccessful bid to file a cross complaint. Defendant is self-represented, and attempted to file a cross-complaint within an amended Answer. This was a procedural error, nothing more. Defendant then filed an appropriate motion for leave to file a cross complaint the very next day after the court on the unsuccessful attempt. This is not the behavior of a party acting in bad faith.

Considering that the spirit of the law is one in which courts should be liberal in granting such requests in the absence of bad faith, this court will allow leave to file a cross complaint but for only the third and fourth causes of action.

Disposition

Defendant's Motion is granted, but only for the third and fourth causes of action.

Defendant must file this Cross Complain within 5 calendar days of this ruling.

Defendant also to file the order on this Motion.

7. 9:00 AM CASE NUMBER: L25-06618

CASE NAME: TD BANK USA, N.A. VS. J BUSTILLOHERRERA

***HEARING ON MOTION FOR DISCOVERY FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED**

FILED BY: TD BANK USA, N.A.

TENTATIVE RULING:

Plaintiff filed a motion to deem as true matters requested for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court will notify Defendant.

8. 9:00 AM CASE NUMBER: L25-09151

CASE NAME: JEREES LARKINS VS. HOUSING AUTHORITY OF THE COUNTY OF CONTRA COSTA
HEARING ON DEMURRER TO: DEF HOUSING AUTH OF CCC DEMURRER TO PLN COMPLAINT
FILED BY: HOUSING AUTHORITY OF THE COUNTY OF CONTRA COSTA

TENTATIVE RULING:

Background

Defendant brings this Demurrer (hereinafter, Motion), filed on 12/3/25, arguing that Plaintiff's Complaint is barred by the doctrine of claim preclusion, or res judicata, in that Plaintiff already pursued another matter against Defendant - namely, the lawsuit in C24-03348 - with identical issues and facts.

Defendant filed a declaration indicating that they attempted to meet and confer with Plaintiff about the issues in this Motion, but Plaintiff did not respond.

Defendant also filed a request for judicial notice of the case in C24-03348.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.*

However, a demurrer also lies where the facts alleged in the complaint or matters judicially noticed show that plaintiff is seeking relief from the same defendant on the same cause of action as in a *pending* action. CCP 430.10(c). The plain language of Section 430.10(c) of the CCP does not require that judgment must be reached in the prior action for the doctrine to apply, only that, "There is another action pending between the same parties on the same cause of action." Also see, *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 C4th 1127, 1146. Full recovery for a cause of action must be obtained in a single lawsuit. A plaintiff cannot split a cause of action into successive suits against the same person. *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 C4th 1127, 1145.

While the rule against case-splitting is in a part a rule of abatement, it is also in a part an application of the doctrine of *res judicata*. *Id.* at 1146. Indeed, the purpose of *res judicata* is to preclude a plaintiff from attempting to divide a primary right and enforce it in two suits. The doctrine accomplishes this by either of two means, one which occurs when the first suit is still pending when the second is filed. *Lincoln Property Co., N.C.,*

Inc. v. Travelers Indemnity Co. (2006) 137 Cal.App.4th 905, 912; also see *Wulfjen v. Dolton* (1944) 24 Cal.2d 981, where plaintiff was estopped from second lawsuit even though prior lawsuit against same defendants was on appeal and judgment was not final).

“A claim raised in a second suit is ‘based on the same cause of action’ as one asserted in a prior or pending action if they are both premised on the same ‘primary right.’ The plaintiff’s primary right is the right to be free from a particular injury, regardless of the legal theory on which liability for the injury is based.” *Gillies v. JPMorgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, 914. “The scope of the primary right therefore depends on how the injury is defined. A cause of action comprises the plaintiff’s primary right, the defendant’s corresponding primary duty, and the defendant’s wrongful act in breach of that duty.” *Federation of Hillside and Canyon Assns. v. City of Los Angeles* 126 Cal.App.4th 1180, 1202.

While it is true that one wrongful act may lead to violations of different primary rights, and thus enable the pursuit of different claims, multiple, discrete wrongful acts by a party may only invade a single primary right. See *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves and Savitch, LLP* (2011) 195 Cal.App.4th 265, (where, despite the allegation of a number of discrete acts of attorney malpractice (i.e., a number of different breaches of a duty) over the course of a single representation, the plaintiff-client had only one primary right, namely, to be free of negligence by client’s attorneys).

Courts have also used a transactional analysis when evaluating whether claims are the same for purposes of *res judicata*. Under a transactional analysis approach, claims are the same if they arise from the same transaction or series of connected transactions. 5th and *LA v. Western Waterproofing Co., Inc.* (2023) 87 Cal.App.5th 781, 791. “What factual grouping constitutes a ‘transaction,’ and what groupings constitute a ‘series,’ are to be determined pragmatically, giving weight to such considerations as whether the facts are related in time, space, origin, or motivation, whether they form a convenient trial unit, and whether their treatment as a unit conforms to the parties’ expectations or business understanding or usage.” *Id.*

For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in

all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

The court takes judicial notice of the pleadings in the instant matter, as well as the Complaint in the case, C24-03348 (hereinafter, Case 1).

In the instant matter, the Complaint, filed 8/18/25, Plaintiff alleges a number of causes of action which all stem from the housing rental agreement between the parties, and which cover a time period beginning with the agreement, on 8/4/23, until 5/7/24. The allegations are that Defendant was the landlord, and center on the conduct by the Defendant, namely, that Defendant failed to maintain a habitable rental residence and that, rather than address the habitability issues, Defendant engaged in a pattern of harassment to force Plaintiff out of the residence. The harassing conduct is not alleged with specificity, other than to claim intimidation and retaliation by virtue of refusing to make any repairs.

In the Complaint for case C24-03348, filed 12/11/24, the factual allegations appear to cover a broader time period, beginning 8/4/23 and then onward, covering “all relevant times.” There is nothing in the Complaint to suggest the claims are limited to events occurring after 5/7/24. The causes of action stem from the same rental agreement as in the instant matter, and involve the same allegations of conduct, that Defendant failed to maintain a habitable rental residence and that, rather than address the habitability issues, Defendant engaged in a pattern of harassment to force Plaintiff out of the residence by refusing to make repairs.

The only matters of difference between the two cases that are apparent to the court are the causes of action and the time periods at issue. (The court notes, however, that the time period in the instant matter is completely subsumed by that in Case 1.)

But the primary rights at issue in both cases are identical: The Plaintiff’s right to live in habitable conditions, as well as to be free from harassment. In fact, the court struggles to see any difference at all in the factual allegations between the two cases.

Plaintiff does not dispute that the two cases stem from the same agreement between the parties, and the same pattern of conduct by the Defendant. Rather, Plaintiff argues that the two cases cover different time periods. That does not appear to be the case, as noted above. But even assuming that this is true, for the sake of argument, *res judicata* does not only apply to matters covering the same time periods. The test is whether the two cases involve different primary rights. The Plaintiff is not allowed to split one claim into different lawsuits.

It is also unclear whether the Plaintiff is alleging multiple acts by the Defendant, other than the continuous failure to maintain a habitable residence. But even assuming the Defendant engaged in multiple acts, involving multiple breaches of duty, the primary rights at issue would remain the same.

In sum, the lawsuit in the instant matter involves the same primary rights and the same parties as the lawsuit in Case 1, all stemming from the same transaction: one relationship, that of landlord and tenant; with a single rental agreement at the core; and the same pattern of behavior, namely, failure to maintain and repair. The claims in the two lawsuits are the same and Plaintiff cannot pursue both.

The only remaining issue is whether to grant Plaintiff leave to amend. The court feels that there is little the Plaintiff can do to amend the Complaint without a further invocation of Res Judicata. The Plaintiff has not alluded to any other primary rights or transactions that would legitimately lead to a second and proper lawsuit. But the court defers to longstanding authority that it is to grant leave to amend with liberality.

Disposition

Defendant's Demurrer to all counts in the Complaint is sustained.

Plaintiff to file amended Complaint within 10 days of this order.

Defendant to file Order.

9. 9:00 AM CASE NUMBER: L25-12293

CASE NAME: WELLS FARGO BANK, N.A. VS. ENA ATTIOGBE

*HEARING ON MOTION IN RE: MTN TO STRIKE PORTIONS OF PLTFS COMPLAINT

FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to Strike portions of the Plaintiff's Complaint. Plaintiff filed a timely response, and Defendant then filed a Reply.

Analysis

The Complaint alleges that Defendant breached a contract with Plaintiff in which Plaintiff suffered damages of over \$13,000, and that, as a consequence, Plaintiff is entitled to attorney's fees and other costs. Plaintiff attached a copy of the purported agreement between the parties.

In Defendant's Motion, the only references to damages appear to be those stemming from claims four through six of the third page of the Motion. Defendant claims that: any allegation of damages should be stricken because there is a lack of standing; any claim for attorney's fees should be stricken because there is no apparent contract provision providing for these fees; and that any reference to account balances should be stricken because there is no evidence that Plaintiff owns the account at issue (the court will interpret this last claim as one of Standing).

Defendant concedes that they made no attempt to meet and confer.

In a limited civil case, the only basis for a motion to strike is in the claim that the damages or relief sought are not supported by the allegations of the complaint. Code of Civil Procedure Section 92(d) and (e).

There is a meet and confer requirement. Prior to filing a motion to strike, the moving party must meet and confer with the opposition and attempt to resolve the objections to the pleading. CCP Section 435.5. This conference must occur at least five days before the date the motion is due. CCP Section 435.5(a)(2). However, it does not appear that a failure to meet and confer is a ground for granting or denying the motion. CCP Section 435.5(a)(4).

To survive a motion to strike an allegation that damages are unsupported by the allegations in a complaint, "[T]he ultimate facts showing an entitlement to such relief must be pled by a plaintiff." *Clauson v. Sup.Ct. (Pedus Services, Inc.)* (1998) 67 CA4th 1253, 1255. In ruling on the motion, a court must construe the pleadings "liberally...with a view to substantial justice." CCP Section 452. The court presumes that the allegations are true. "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." *Clauson v. Sup.Ct. (Pedus Services, Inc.)* supra, 67 CA4th at 1255.

In the instant matter, the Defendant did not attempt to meet and confer with Plaintiff. But this fact is not consequential to the ruling.

Instead, it does not appear that Defendant has shown that Plaintiff's damages are not supported by the allegations in the Complaint. While Defendant argues a lack of Standing, this is an affirmative defense, and the Defendant must allege this in the Answer. It is not an issue that must be addressed by Plaintiff in the Complaint. Thus Defendant's fourth and six claims have no merit.

Moreover, with respect to the third claim, the purported agreement, which is attached to the Complaint, does contain a provision on attorney's fees and other costs. Thus,

assuming the allegations of the Complaint are true, namely, that Defendant entered into an agreement with Plaintiff that involved a form of lending, then broke that agreement when Defendant did not repay the loan, that the contract terms called for the repayment of the loaned amount plus payment for attorney's fees and other costs, and that Plaintiff's damages are a result of Defendant's failure to repay the loaned amount, then the damages in the Complaint are supported by the allegations.

Disposition

Defendant's Motion to Strike is Denied.

Plaintiff to file Order.

10. 9:00 AM CASE NUMBER: L25-14979
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. JOLYNN PIAZZA
***HEARING ON MOTION IN RE: TO QUASH SERVICE OF SUMMONS**
FILED BY: PIAZZA, JOLYNN

TENTATIVE RULING:

Plaintiff filed a motion to quash service of summons. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court will notify both parties.

11. 9:00 AM CASE NUMBER: MSL21-02132
CASE NAME: CAPITAL ONE BANK VS ISRAEL
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**
FILED BY: CAPITAL ONE BANK (USA), N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06,

but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continued to 6/2/26, 9am.

Plaintiff to notify Defendant.

**12. 9:00 AM CASE NUMBER: N25-1754
CASE NAME: LUCIANA DATTA VS. DEEPAK MOORJANI
HEARING IN RE: SPECIAL MOTION TO STRIKE COMPLAINT
FILED BY: MOORJANI, DEEPAK**

TENTATIVE RULING:

The court will hear any motions related a Civil Harassment Restraining Order on the day that the hearing for the restraining order is scheduled.

This motion will be scheduled concurrently with the hearing on 4/7/26, at 9am.

Moving party to provide notice to opposing party.

**13. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
*HEARING ON MOTION IN RE: ORDER TO SHOW CAUSE RE SANCTIONS, TO STRIKE FRAUDULENT
PLEADINGS AND DISQUALIFY COUNSEL
FILED BY: MOORJANI, DEEPAK**

TENTATIVE RULING:

The court will hear any motions related a Civil Harassment Restraining Order on the day that the hearing for the restraining order is scheduled.

This motion will be scheduled concurrently with the hearing on 4/7/26, at 9am.

Moving party to provide notice to opposing party.

**14. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
HEARING IN RE: MOTION TO CONSOLIDATE RE: CIVIL HARRASSMENT
FILED BY:**

TENTATIVE RULING:

The court will hear any motions related a Civil Harassment Restraining Order on the day that the hearing for the restraining order is scheduled.

This motion will be scheduled concurrently with the hearing on 4/7/26, at 9am.

Moving party to provide notice to opposing party.

15. 9:00 AM CASE NUMBER: N25-2433

CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.

HEARING IN RE: VERIFIED PET. TO CONFIRM ARBITRATION AWARD & FOR ATTY FEES (CONT FROM 1/20/26)

FILED BY: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100)

TENTATIVE RULING:

Background

Plaintiff has filed a Petition to confirm an arbitration award. Plaintiff has filed a proof of service, on 3/20/26, indicating that personal service occurred on Defendant on 3/3/36.

Though the Petition is unopposed, that time for Defendant to respond has not yet run. California Rules of Court allow a Defendant 30 days to respond after service of the complaint. CRC 3.110(d). The court is not aware of any other deadline that applies specifically to matters such as this.

Further, the court notes that the Petition contains exhibits of more than 200 pages, and that the Plaintiff has referenced several sections of these Exhibits, yet provides no page numbers for these references, and provides no singular pagination system that includes all exhibits (rather, the Plaintiff only provides pagination within a particular Exhibit).

It is not the court's role to sift through hundreds of pages to find a particular exhibit that a party is referencing in the Motion.

The Plaintiff would do well to apply a single Bates pagination system to all exhibits, and then to cite to this system when referencing a particular exhibit.

Disposition

Petition will be continued to 5/12/26, 9am.

Petitioner to file the order.

Petitioner to provide notice of hearing date to Defendants.